

CLIENT PAPER – FOR NEGOTIATION

Master Software Development Services Agreement

by and between

HealthPulse Technologies

("Client")

and

Ruth

("Vendor" or "Ruth")

Effective Date: **July 2026**

Project: *HealthPulse Patient Engagement Platform & Personalization Engine*

This document is a draft prepared by HealthPulse Technologies for the purpose of commercial negotiation. It does not constitute an offer capable of acceptance and is subject to revision. Privileged and confidential.

1. Parties and Recitals

This Master Software Development Services Agreement (this “**Agreement**”) is entered into as of the date of last signature below (the “**Effective Date**”), by and between:

HealthPulse Technologies, a corporation duly organized and existing under applicable law, with its principal place of business as set out in the signature block below (“**Client**” or “**HealthPulse**”); and

Ruth, a software development company with approximately 150 employees, specializing in full-stack engineering and applied machine learning / AI development services, with its principal place of business as set out in the signature block below (“**Vendor**” or “**Ruth**”).

Client and Vendor are each referred to herein as a “**Party**” and collectively as the “**Parties**.”

Recitals

- (a) Client is a digital health company developing a patient engagement platform intended to help patients manage their care, receive personalized health content, and schedule appointments, and wishes to engage a qualified third-party development firm to design, build, and deliver such a platform, including a moderate machine learning-based recommendation engine for personalized health content and appointment suggestions (the “**Project**”).
- (b) The Project requires a full-stack patient- and provider-facing application (the “**Core Platform**”) together with a recommendation engine that will be fine-tuned using Client-provided data (the “**ML Component**”).
- (c) Vendor represents that it has the requisite skill, personnel, and experience, including applied ML/AI development experience, to perform such services and is willing to provide such services to Client on the terms set out in this Agreement.
- (d) The Parties intend that this Agreement shall serve as the master framework governing the Project, with the Core Platform delivered on a fixed-price basis and the ML Component delivered on a time-and-materials basis, as further detailed in one or more Statements of Work executed under Section 3, over an anticipated duration of seven (7) months from the Effective Date.
- (e) Given the sensitivity of health-related data anticipated to be processed in connection with the Project, the Parties intend for this Agreement to include enhanced data protection, security, and IP provisions appropriate to the nature of the Project, as set out below.

NOW, THEREFORE, in consideration of the mutual covenants contained herein, the Parties agree as follows.

2. Scope of Services and Deliverables

2.1 Overview of Services

Vendor shall design, develop, test, and deliver the Core Platform and the ML Component substantially in accordance with the specifications set out in the Statement of Work attached as **Exhibit A** (the “**Initial SOW**”), together with any subsequent Statements of Work executed pursuant to Section 3 (collectively, the “**Services**”). The Services and associated work product to be delivered under the Initial SOW include, without limitation:

- (a) **Patient Portal**: a responsive web application and companion mobile application enabling patients to manage their profile and care preferences, view personalized health content, receive appointment

suggestions, and schedule or modify appointments;

- (b) **Provider / Admin Dashboard:** an internal, role-based administrative web application enabling Client and its provider network to manage patient records access, content libraries, appointment availability, and platform configuration;
- (c) **Recommendation / Personalization Engine:** a machine learning-based system that generates personalized health content recommendations and appointment suggestions based on patient data, engagement history, and other signals made available by Client, including fine-tuning of a base model or models selected by Vendor (subject to Client approval) on Client-provided training data;
- (d) **Integration Layer:** a documented backend API layer supporting the Core Platform and ML Component, including integration with Client's existing scheduling and/or EHR-adjacent systems as specified in the Initial SOW;
- (e) **Data Pipeline:** data ingestion, preprocessing, and feature-engineering pipelines reasonably necessary to prepare Client data for use in training and operating the ML Component; and
- (f) **Associated Documentation:** technical documentation, model documentation (including training data lineage, evaluation methodology, and known limitations), deployment/runbook documentation, and administrator/user guides reasonably necessary for Client to operate and maintain the delivered platform.

2.2 Deliverables

“**Deliverables**” means the software, source code, trained model artifacts, model weights (to the extent generated through fine-tuning under this Agreement), documentation, and other work product identified as deliverables in the Initial SOW or any subsequent SOW, together with all Milestone deliverables described in Exhibit A. Each Deliverable shall be provided in a form reasonably usable by Client and, where applicable, deployed to the staging or production environment designated by Client.

2.3 ML Component – Performance Expectations

- (a) Vendor acknowledges that the ML Component is expected to achieve a level of recommendation relevance and appointment-suggestion accuracy that is materially useful for Client's clinical and engagement objectives. The Initial SOW shall set out target evaluation metrics for the ML Component (e.g., top-N recommendation precision/recall on a held-out validation set, or an equivalent metric mutually agreed by the Parties) (the “**Target Metrics**”).
- (b) If, following the model tuning and evaluation work contemplated under the Initial SOW, the ML Component does not meet the Target Metrics, Vendor shall, as part of the time-and-materials scope for the ML Component and without an automatic right to bill additional fees solely on account of such shortfall, perform up to two (2) additional tuning iterations directed at closing the gap to the Target Metrics before the Parties discuss whether further work should proceed as a Change Order under Section 3.
- (c) The Parties acknowledge that ML system performance can be affected by the quality, volume, and representativeness of Client-provided training data, and that Vendor's obligations under this Section 2.3 are conditioned on Client providing training data of a quality and volume reasonably consistent with the assumptions set out in the Initial SOW.

2.4 Project Team and Key Personnel

Vendor shall assign a project team with the skills reasonably necessary to perform the Services, including a designated Project Manager and a designated ML/Data Lead, each of whom shall be treated as Key Personnel under Section 11. Vendor shall provide a weekly written status update covering progress against the Milestone schedule and, for the ML Component, progress against Target Metrics, risks, and any blockers requiring Client input, and shall make its Project Manager reasonably available for a weekly status call.

2.5 Client Responsibilities

Client shall: (i) provide timely access to information, credentials, environments, and personnel reasonably required for Vendor to perform the Services; (ii) provide training data for the ML Component in a timely manner and in a format reasonably specified by Vendor; (iii) designate a Project Lead with authority to make day-to-day decisions on Client's behalf; and (iv) respond to Vendor's reasonable requests for review, feedback, or approval within the timeframes specified in the Initial SOW, or if none is specified, within five (5) business days. Vendor's obligations and the Milestone schedule shall be subject to reasonable adjustment to the extent any delay is directly and materially caused by Client's failure to fulfill its responsibilities under this Section 2.5, provided Vendor notifies Client promptly upon becoming aware of such delay.

3. Statements of Work and Change Control

3.1 Statements of Work

The Initial SOW is attached as Exhibit A and forms part of this Agreement. Additional Statements of Work (each, an "**SOW**") may be executed by the Parties from time to time, each of which shall reference this Agreement and become part of it upon execution by authorized representatives of both Parties. In the event of any conflict between the terms of this Agreement and an SOW, the terms of this Agreement shall govern unless the SOW expressly states that it is varying a specifically identified provision of this Agreement.

3.2 Milestone Schedule

The Initial SOW sets out a schedule of project milestones (each, a "**Milestone**") for the Core Platform, associated deliverables, and target completion dates over the seven (7) month project duration, along with the corresponding fixed payment amount for each Milestone as set out in Section 4. The ML Component shall be tracked against the sprint-based schedule set out in Exhibit A and invoiced on a time-and-materials basis as set out in Section 4.

3.3 Change Control Procedure

- (a) Either Party may propose changes to the scope, Deliverables, Milestone schedule, Target Metrics, or fees under an SOW by submitting a written change request describing the proposed change in reasonable detail (a "**Change Request**").
- (b) Within five (5) business days of receipt of a Change Request, Vendor shall provide Client with a written response identifying: (i) any impact on scope, Deliverables, or the Milestone schedule; (ii) any change in fees; and (iii) any other material impact Vendor reasonably anticipates. Client may request that Vendor provide such a response, together with a good-faith estimate of hours for T&M-scoped work, prior to Vendor commencing any work outside the then-current SOW.

- (c) No Change Request shall be binding on either Party, and Vendor shall have no obligation to perform work outside the then-current SOW, unless and until the Parties execute a written change order signed by authorized representatives of both Parties (a “**Change Order**”). Each executed Change Order shall be deemed incorporated into and form part of the applicable SOW.
- (d) Minor clarifications that do not affect fixed fees, Milestone dates, or the substantive functionality of a Deliverable may be handled via written confirmation (including email) between the Parties’ respective Project Leads without a formal Change Order, provided such items are logged and do not, individually or in the aggregate, extend any Milestone date by more than three (3) business days.

4. Fees, Payment Terms and Invoicing

4.1 Fee Structure

The Project shall be delivered on a hybrid commercial basis: (i) the Core Platform shall be delivered for a fixed fee; and (ii) the ML Component shall be delivered on a time-and-materials basis, subject to the not-to-exceed cap set out in Section 4.3. The Parties anticipate that total fees payable under the Initial SOW, inclusive of the ML Component T&M cap, will fall within the range of USD \$320,000 to \$380,000.

4.2 Core Platform – Fixed Price and Milestone Schedule

Client shall pay Vendor a fixed fee of **USD \$260,000** for the Core Platform (the “**Core Platform Fee**”), invoiced and paid in accordance with the following Milestone schedule:

#	Milestone	% of Fee	Amount (USD)
1	Kickoff, discovery, and finalized functional/technical specification	10%	\$26,000
2	UX/UI design sign-off and approved system architecture (Month 1)	10%	\$26,000
3	Provider/Admin dashboard – functional build, deployed to staging (Month 2–3)	20%	\$52,000
4	Patient portal (web & mobile), including integration layer – functional build, deployed to staging (Month 3–5)	25%	\$65,000
5	Integrated system testing, bug-fix cycle, and UAT support (Month 5–6)	15%	\$39,000
6	Final Acceptance and production go-live (Month 7)	20%	\$52,000
Total		100 %	\$260,000

4.3 ML Component – Time and Materials

Client shall pay Vendor for the ML Component on a time-and-materials basis at the hourly rates set out in Exhibit A, subject to a not-to-exceed cap of **USD \$100,000** (the “**ML Cap**”) without Client’s prior written approval. Vendor shall notify Client in writing when cumulative T&M charges for the ML Component reach 75% of the ML Cap, and shall not incur charges in excess of the ML Cap absent a Change Order increasing the ML Cap. Time shall be recorded in increments of no greater than fifteen

(15) minutes and shall be supported by reasonably detailed timesheet data made available to Client upon request.

4.4 Invoicing

For the Core Platform, Vendor shall issue an invoice to Client within five (5) business days following Client's written acceptance of the applicable Milestone in accordance with Section 10. For the ML Component, Vendor shall issue invoices monthly in arrears, with reasonably detailed supporting time entries by individual and task.

4.5 Payment Terms

Client shall pay each undisputed invoice within **forty-five (45) days** of the invoice date, by wire transfer or ACH to the account designated by Vendor. If Client disputes any portion of an invoice in good faith, Client shall notify Vendor in writing within twenty (20) days of receipt, specifying the disputed amount and the reasons therefor, and shall pay the undisputed portion in accordance with this Section 4.5; the Parties shall work in good faith to resolve any such dispute within thirty (30) days. Amounts that remain properly disputed in good faith shall not be treated as overdue for purposes of Section 4.6 or Section 9.3 pending resolution.

4.6 Late Payment

Any undisputed amount not paid when due shall accrue interest at the lesser of one percent (1%) per month or the maximum rate permitted by applicable law, calculated from the due date until paid in full. Vendor shall not suspend Services on account of a payment dispute or delay unless the undisputed overdue amount exceeds the greater of one Milestone payment or \$25,000, and remains unpaid for more than forty-five (45) days following written notice to Client of such delinquency.

4.7 Taxes and Expenses

The fees set out in this Section 4 are exclusive of applicable sales, use, VAT, or similar transaction taxes, which shall be identified separately on Vendor's invoices and borne by Client, excluding taxes based on Vendor's net income. Vendor shall bear its own overhead, employment, and general business expenses. Client shall not be responsible for any travel, subsistence, or other out-of-pocket expenses unless such expenses are pre-approved by Client in writing.

4.8 Currency

All amounts referenced in this Agreement are in United States Dollars (USD).

5. Intellectual Property

5.1 Client Materials and Client Data

As between the Parties, Client owns and shall retain all right, title, and interest in and to: (i) any data, content, trademarks, specifications, and other materials provided by Client to Vendor in connection with the Services ("**Client Materials**"); and (ii) all patient data, health-related data, engagement data, and any other data provided by or generated on behalf of Client in connection with the Project, including data used to train or fine-tune the ML Component ("**Client Data**"). Vendor is granted a limited, non-exclusive, non-transferable license to use the Client Materials and Client Data solely to perform the Services during the term of this Agreement, and Vendor shall have no right to use Client Data for any

purpose other than performing the Services, including no right to use Client Data to train, tune, evaluate, or improve any model or system for the benefit of any party other than Client.

5.2 Work Product

Subject to Section 5.4, as between the Parties, all Deliverables, source code, object code, designs, documentation, and other work product created by Vendor specifically for Client under an SOW (collectively, “**Work Product**”) shall be considered “work made for hire” to the extent permitted under applicable law. To the extent any such Work Product is not deemed a work made for hire, Vendor hereby irrevocably assigns to Client, effective upon creation, all right, title, and interest, including all intellectual property rights, in and to such Work Product. Vendor shall, at Client’s reasonable request and expense, execute such further documents as are reasonably necessary to give effect to this assignment.

5.3 Fine-Tuned Models and ML Work Product

As between the Parties, Client shall own all right, title, and interest, including all intellectual property rights, in and to: (i) the fine-tuned model weights, parameters, and configurations resulting from fine-tuning performed under this Agreement using Client Data (the “**Fine-Tuned Models**”); (ii) any prompts, evaluation datasets, and feature engineering logic developed specifically for the Project; and (iii) any model documentation, evaluation results, and training data lineage records prepared in connection with the ML Component. Vendor hereby assigns to Client all right, title, and interest in and to the Fine-Tuned Models and the items described in clauses (ii) and (iii), effective upon creation, subject to Vendor’s retained rights in Vendor Background IP under Section 5.5. For clarity, Client’s ownership of the Fine-Tuned Models does not extend to any underlying pre-trained base model licensed from a third party, which remains subject to that third party’s applicable license terms as disclosed by Vendor in the technical documentation.

5.4 No Reuse of Client-Derived Improvements

Vendor agrees that any techniques, configurations, or general learnings developed by Vendor in the course of fine-tuning the ML Component that are not themselves Client Data or Fine-Tuned Models (e.g., general improvements to Vendor’s fine-tuning methodology) may be retained and reused by Vendor in engagements with other clients, provided that Vendor shall not use, disclose, or reverse-engineer the Fine-Tuned Models themselves, or any Client Data, in doing so, and provided further that such reuse shall not involve any content, output, or artifact that is derived from or substantially similar to Client Data or the Fine-Tuned Models.

5.5 Vendor Pre-Existing IP and Tools

Vendor retains all right, title, and interest in and to: (i) any pre-existing software, frameworks, libraries, tools, methodologies, know-how, or other materials owned or developed by Vendor prior to or independently of this Agreement (“**Vendor Background IP**”); and (ii) any general-purpose, non-Client-specific improvements to Vendor Background IP developed during the course of performing the Services, provided such improvements do not incorporate or disclose any Client Materials, Client Data, or Fine-Tuned Models. To the extent any Vendor Background IP is incorporated into or required for the use, operation, or maintenance of a Deliverable, Vendor hereby grants Client a perpetual, irrevocable, worldwide, royalty-free, fully paid-up, non-exclusive license to use, execute, reproduce, modify, and create derivative works of such Vendor Background IP solely as embedded or incorporated in, and to the extent necessary to use, the applicable Deliverable. Vendor shall identify in the Initial SOW any Vendor Background IP it anticipates incorporating into the ML Component prior to commencing fine-tuning work.

5.6 Open Source Components

Vendor shall identify, in the technical documentation delivered with the applicable Deliverable, any material open-source or third-party software components incorporated into the Work Product, together with their applicable license terms. Vendor shall not incorporate any open-source component into a Deliverable under a license that would require Client to disclose, license, or distribute Client's proprietary source code (a "**Copyleft License**", such as the GPL or AGPL) without Client's prior written approval.

5.7 Feedback

If Client provides Vendor with suggestions, ideas, or feedback regarding Vendor Background IP or Vendor's general tools and methodologies (as distinct from Client Materials, Client Data, or Fine-Tuned Models), Vendor may use such feedback without restriction or obligation to Client.

6. Confidentiality and Data Protection

6.1 Confidential Information

"**Confidential Information**" means any non-public information disclosed by one Party (the "**Disclosing Party**") to the other (the "**Receiving Party**"), whether orally, in writing, or otherwise, that is designated as confidential or that a reasonable person would understand to be confidential given the nature of the information and circumstances of disclosure, including business, technical, financial, and customer information, and, in Client's case, all Client Materials, Client Data, Fine-Tuned Models, and non-public product or roadmap information. Confidential Information does not include information that: (i) is or becomes publicly available through no fault of the Receiving Party; (ii) was rightfully known to the Receiving Party prior to disclosure without an obligation of confidentiality; (iii) is rightfully received from a third party without breach of any confidentiality obligation; or (iv) is independently developed without use of or reference to the Disclosing Party's Confidential Information.

6.2 Obligations

The Receiving Party shall: (i) use the Disclosing Party's Confidential Information solely to perform its obligations or exercise its rights under this Agreement; (ii) protect such Confidential Information using at least the same degree of care it uses to protect its own confidential information of similar nature, and in no event less than a reasonable degree of care; and (iii) not disclose such Confidential Information to any third party except to its employees, contractors, and advisors who have a need to know and are bound by confidentiality obligations at least as protective as those in this Section 6. The Receiving Party may disclose Confidential Information to the extent required by law or court order, provided it gives the Disclosing Party prompt notice (where legally permitted) and reasonable cooperation to seek a protective order.

6.3 Health Data and Enhanced Security Requirements

- (a) Given the nature of the Project, Vendor acknowledges that Client Data may include, or be derived from, health-related information regarding identifiable individuals ("**Health-Adjacent Data**"). Vendor shall implement and maintain administrative, technical, and physical safeguards for Health-Adjacent Data that are, at minimum, consistent with generally recognized industry security frameworks appropriate for health-related data (e.g., encryption at rest and in transit, role-based access controls, access logging, and regular vulnerability scanning of environments processing such data).

- (b) Vendor shall restrict access to Health-Adjacent Data to those personnel with a demonstrable need to know for purposes of performing the Services, and shall maintain a current record of personnel with such access, available to Client upon reasonable request.
- (c) To the extent Client determines that the Project involves the processing of “protected health information” or similar regulated health data under applicable law, the Parties shall promptly negotiate in good faith and execute an appropriate business associate agreement or equivalent data protection addendum, which shall be incorporated into this Agreement upon execution, and Vendor shall comply with its terms in addition to this Section 6.
- (d) Vendor shall not, without Client’s prior written consent, transfer or process Health-Adjacent Data outside the geographic regions disclosed in the Initial SOW.

6.4 Security Incident Notification

Vendor shall notify Client without undue delay, and in any event within twenty-four (24) hours, after becoming aware of any confirmed or reasonably suspected unauthorized access to, or disclosure or loss of, Client Confidential Information, Client Data, or Health-Adjacent Data (a “**Security Incident**”), and shall reasonably cooperate with Client’s investigation, remediation, and any notification obligations, including providing information reasonably requested by Client to support any regulatory notification Client is required to make.

6.5 Audit Rights

No more than once per twelve (12)-month period, absent a Security Incident or reasonably suspected material non-compliance (in which case this frequency limit shall not apply), Client may, upon at least fifteen (15) business days’ prior written notice, request that Vendor complete a written security and data-handling questionnaire and, if reasonably necessary based on Client’s review of Vendor’s responses, participate in a call with Client’s security personnel to discuss Vendor’s practices as they relate to the Services. Any on-site or system-level audit shall be subject to the Parties’ mutual agreement as to scope, timing, and confidentiality protections, such agreement not to be unreasonably withheld by Vendor.

6.6 Return or Destruction

Upon Client’s written request following termination or expiration of this Agreement, the Receiving Party shall return or securely destroy all Confidential Information, Client Data, and (in Vendor’s case) any copies of Fine-Tuned Models retained outside of the delivered Deliverables, except to the extent retention is required by law or in accordance with the Receiving Party’s standard backup and archival practices, subject to the confidentiality obligations of this Section 6 continuing to apply to any retained copies.

6.7 Survival

The confidentiality obligations in this Section 6 shall survive termination or expiration of this Agreement for a period of five (5) years, except that obligations with respect to trade secrets and Health-Adjacent Data shall survive for so long as such information remains a trade secret or regulated health data, as applicable, under applicable law.

7. Warranties

7.1 Mutual Warranties

Each Party represents and warrants that: (i) it has the full corporate right, power, and authority to enter into this Agreement; (ii) the execution and performance of this Agreement does not violate any other agreement to which it is a party; and (iii) it shall comply with applicable laws in connection with its performance of this Agreement.

7.2 Vendor Performance Warranty

Vendor warrants that: (i) the Services shall be performed in a professional and workmanlike manner, consistent with generally recognized industry standards for similarly situated software and applied ML development engagements; (ii) the Deliverables comprising the Core Platform, as accepted by Client under Section 10, shall materially conform to the functional specifications set out in the applicable SOW; (iii) the ML Component, as accepted by Client under Section 10, shall materially conform to the functional specifications and, subject to Section 2.3, the Target Metrics set out in the applicable SOW; (iv) it shall not knowingly introduce any virus, malware, or other malicious code into any Deliverable; and (v) the Work Product, as delivered by Vendor, shall not, to Vendor's knowledge as of the date of delivery, infringe the intellectual property rights of any third party.

7.3 Warranty Period and Remedy

For a period of **one hundred eighty (180) days** following Final Acceptance of the applicable Deliverable under Section 10 (the “**Warranty Period**”), Vendor shall, at no additional cost to Client, correct any material non-conformity of a Deliverable with the applicable functional specification (and, for the ML Component, any material failure to perform consistently with the Target Metrics as measured at Final Acceptance, where such failure first manifests during the Warranty Period and is not attributable to a change in the character or volume of Client Data or usage patterns following Final Acceptance) that is reported by Client in writing during the Warranty Period, provided such non-conformity is not caused by: (a) modifications to the Deliverable made by Client or a third party without Vendor's involvement; (b) use of the Deliverable in a manner inconsistent with the applicable documentation; or (c) third-party software, infrastructure, or services not provided by Vendor. This Section 7.3 states Client's primary remedy, and Vendor's primary obligation, for any breach of the warranty in Section 7.2(ii) or 7.2(iii), without prejudice to Client's other rights and remedies under this Agreement, including under Section 8.

7.4 Disclaimer

EXCEPT AS EXPRESSLY SET OUT IN THIS SECTION 7, AND TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, VENDOR MAKES NO OTHER WARRANTIES, WHETHER EXPRESS, IMPLIED, STATUTORY, OR OTHERWISE, INCLUDING ANY IMPLIED WARRANTIES OF MERCHANTABILITY OR FITNESS FOR A PARTICULAR PURPOSE, EXCEPT AS OTHERWISE PROVIDED IN SECTION 8.3 (IP INDEMNIFICATION). FOR THE AVOIDANCE OF DOUBT, NOTHING IN THIS SECTION 7.4 IS INTENDED TO LIMIT THE WARRANTY OF NON-INFRINGEMENT SET OUT IN SECTION 7.2(V).

8. Limitation of Liability and Indemnification

8.1 Limitation of Liability

- (a) Except for the Excluded Claims set out in Section 8.2, in no event shall either Party's aggregate liability arising out of or related to this Agreement exceed an amount equal to **two (2) times** the total fees actually paid or payable by Client to Vendor under the applicable SOW in the twelve (12) months preceding the event giving rise to the claim.
- (b) Except for the Excluded Claims, in no event shall either Party be liable for any indirect, incidental, consequential, special, or punitive damages arising out of or related to this Agreement, even if advised of the possibility of such damages. For the avoidance of doubt, and notwithstanding the foregoing, direct damages shall be deemed to include, without limitation, the reasonable cost of: (i) recreating or re-performing Services that fail to conform to this Agreement; (ii) investigating, containing, and remediating a Security Incident caused by Vendor's breach of Section 6; and (iii) any regulatory fines or penalties imposed on Client to the extent directly and proximately caused by Vendor's failure to comply with its obligations under Section 6.3, in each case which shall not be deemed indirect or consequential damages for purposes of this Section 8.1(b).

8.2 Excluded Claims

The limitations in Section 8.1 shall not apply to: (i) either Party's indemnification obligations under Section 8.3 or 8.4; (ii) a Party's breach of its confidentiality obligations under Section 6, including with respect to Health-Adjacent Data; (iii) either Party's gross negligence, willful misconduct, or fraud; or (iv) Client's payment obligations for undisputed amounts properly invoiced under Section 4. With respect to the exclusions in clauses (i) (solely as to Section 8.3) and (ii) of this Section 8.2, the aggregate liability of the indemnifying or breaching Party shall not exceed an amount equal to **three (3) times** the total fees paid or payable under the applicable SOW.

8.3 IP Indemnification by Vendor

Vendor shall defend, indemnify, and hold harmless Client from and against any third-party claims, damages, and reasonable costs (including reasonable attorneys' fees) arising out of an allegation that a Deliverable, as delivered by Vendor and used in accordance with the applicable documentation, infringes such third party's intellectual property rights, provided that Client: (i) promptly notifies Vendor in writing of the claim; (ii) gives Vendor control of the defense and settlement of the claim (provided Vendor shall not settle any claim in a manner that admits fault by Client or imposes any obligation on Client without Client's prior written consent, not to be unreasonably withheld, and provided further that Client may participate in the defense with counsel of its choosing at its own expense); and (iii) provides Vendor with reasonable cooperation, at Vendor's expense. This indemnity shall not apply to claims arising solely from: (a) Client Materials or Client Data as provided by Client without modification by Vendor; (b) modifications to a Deliverable not made or authorized by Vendor; or (c) combination of a Deliverable with products or services not provided by Vendor, where the claim would not have arisen absent such combination. If a Deliverable is held to infringe, Vendor shall, at its option and expense, either: (1) procure the right for Client to continue using the Deliverable; (2) replace or modify the Deliverable to be non-infringing while preserving substantially equivalent functionality; or (3) if neither is commercially reasonable, terminate the applicable SOW and refund fees paid for the affected Deliverable, depreciated on a straight-line basis over twenty-four (24) months from Final Acceptance.

8.4 General Indemnification by Vendor

Vendor shall additionally defend, indemnify, and hold harmless Client from and against third-party claims (including claims by regulators or affected individuals), damages, and reasonable costs (including reasonable attorneys' fees) arising out of: (i) bodily injury or death, or damage to tangible property, caused by Vendor's negligence or willful misconduct; (ii) Vendor's breach of its confidentiality or data protection obligations under Section 6, including any Security Incident caused by Vendor's failure to implement the safeguards required under Section 6.3; or (iii) Vendor's violation of applicable data protection or health information privacy law in its handling of Client Data or Health-Adjacent Data.

8.5 Indemnification by Client

Client shall defend, indemnify, and hold harmless Vendor from and against third-party claims, damages, and reasonable costs (including reasonable attorneys' fees) arising out of: (i) Client Materials or Client Data, including any claim that Client Materials or Client Data, as provided to Vendor, infringe a third party's intellectual property rights or violate applicable law; or (ii) Client's breach of its confidentiality obligations under Section 6, subject to the procedural requirements of Section 8.3 applying mutatis mutandis.

9. Term and Termination

9.1 Term

This Agreement shall commence on the Effective Date and continue until the completion of all Services under the Initial SOW and any subsequent SOWs, unless earlier terminated in accordance with this Section 9 (the "**Term**"). The Initial SOW has an anticipated duration of seven (7) months from the Effective Date, as set out in Exhibit A.

9.2 Termination for Convenience

Client may terminate this Agreement or any SOW for convenience upon thirty (30) days' prior written notice to Vendor. In the event of such termination, Client shall pay Vendor for: (i) Core Platform Services satisfactorily performed and Deliverables accepted prior to the effective date of termination, on a pro-rated basis calculated by reference to the percentage completion of the then-current Milestone, as reasonably determined based on Vendor's documented progress; (ii) ML Component Services properly performed on a time-and-materials basis up to the effective date of termination, subject to the ML Cap; and (iii) reasonable, pre-approved, non-cancellable third-party costs directly incurred by Vendor prior to the effective date of termination. For the avoidance of doubt, Client shall not be obligated to pay for any Milestone that has not been reached or for anticipated fees under Milestones not yet commenced.

9.3 Termination for Cause

Either Party may terminate this Agreement or the affected SOW upon written notice if the other Party materially breaches this Agreement and fails to cure such breach within thirty (30) days following written notice describing the breach in reasonable detail, provided that, for a breach of Section 6 (Confidentiality and Data Protection) involving Health-Adjacent Data, Client may terminate immediately upon written notice if such breach is not capable of cure or is not cured within ten (10) days. Either Party may terminate this Agreement immediately upon written notice if the other Party: (i) becomes insolvent, makes an assignment for the benefit of creditors, or becomes subject to bankruptcy or similar proceedings not dismissed within sixty (60) days; or (ii) ceases to conduct business in the ordinary course.

9.4 Effect of Termination

Upon any termination or expiration of this Agreement: (i) Vendor shall promptly (and in any event within ten (10) business days) deliver to Client all Work Product completed or in progress as of the effective date of termination, including source code and any Fine-Tuned Models or model artifacts then existing, in the form then existing; (ii) each Party shall return or destroy the other Party's Confidential Information and Client Data in accordance with Section 6.6; and (iii) any provision which by its nature is intended to survive termination (including Sections 4 (as to amounts owed), 5, 6, 7.3, 8, 9.5, and 12) shall survive.

9.5 Transition Assistance

Upon termination of this Agreement other than by Vendor for Client's uncured material breach, Vendor shall, for a period of up to forty-five (45) days following the effective date of termination, provide reasonable transition assistance to Client or a successor vendor designated by Client, including knowledge transfer, access to project documentation, and support migrating the Fine-Tuned Models to Client-designated infrastructure, at Vendor's then-current standard rates as set out in Exhibit A, provided Client requests such assistance within fifteen (15) days of termination.

10. Acceptance and Performance

10.1 Milestone Acceptance Procedure

Upon completion of each Milestone, Vendor shall notify Client in writing and provide access to the applicable Deliverable(s) for review (each, a "**Delivery Notice**"). Client shall have fifteen (15) business days from receipt of a Delivery Notice (the "**Review Period**") to review the Deliverable(s) against the applicable functional specification (and, where applicable, the Target Metrics) and either: (i) accept the Milestone in writing; or (ii) reject the Milestone by providing Vendor with a written list of material non-conformities with reasonable specificity to allow Vendor to reproduce and address them.

10.2 Cure Period

If Client rejects a Milestone under Section 10.1(ii), Vendor shall use commercially reasonable efforts to correct the identified non-conformities within ten (10) business days (or such other period as the Parties agree in writing, acting reasonably, based on the nature of the non-conformities) and shall re-submit the Deliverable(s) for a further Review Period of seven (7) business days. If a Milestone is rejected on two (2) consecutive occasions for substantially similar material non-conformities, Client may, in addition to its other rights, elect to treat such failure as a material breach subject to the cure procedure in Section 9.3.

10.3 Deemed Acceptance

If Client does not accept or reject a Milestone in writing within the applicable Review Period, the Milestone shall be deemed accepted, provided Vendor's Delivery Notice included a clear statement that deemed acceptance would apply after the Review Period.

10.4 Final Acceptance

"**Final Acceptance**" means acceptance (including deemed acceptance) of the final Milestone under the Initial SOW, being production go-live of the complete platform, including the ML Component operating in accordance with the Target Metrics, as set out in Exhibit A.

10.5 User Acceptance Testing and ML Evaluation

For Milestones 5 and 6 under Exhibit A, Vendor shall support Client in performing structured user acceptance testing (“UAT”) against agreed test scripts and, for the ML Component, evaluation against the Target Metrics using a held-out validation dataset agreed by the Parties in advance, including reasonable Vendor availability to triage and address issues identified during UAT and evaluation prior to Client’s acceptance decision.

10.6 Ongoing Performance Monitoring

For the six (6) month period following Final Acceptance, Vendor shall, as part of the transition to any support arrangement agreed between the Parties, make reasonably available the monitoring dashboards, evaluation scripts, and documentation necessary for Client to independently track the ML Component’s real-world performance against the Target Metrics.

11. Key Personnel and Subcontracting

11.1 Key Personnel

The individuals identified in the Initial SOW as “Key Personnel,” including the Project Manager and ML/Data Lead referenced in Section 2.4, shall not be removed from the Project or materially reduced in time allocation without Client’s prior written consent, not to be unreasonably withheld, except in cases of resignation, termination for cause, extended illness, or other circumstances outside Vendor’s reasonable control. In any such case, Vendor shall: (i) notify Client in writing as promptly as reasonably possible, and in any event within three (3) business days; and (ii) propose a suitably qualified replacement, subject to Client’s reasonable approval, at no additional cost to Client and with a knowledge-transfer period of no less than five (5) business days overlapping with the departing individual where feasible.

11.2 Subcontracting

Vendor may engage subcontractors to perform portions of the Services, provided that: (i) Vendor remains fully responsible for the performance of the Services and compliance with this Agreement as if performed by Vendor directly; (ii) any subcontractor with access to Client Confidential Information, Client Data, or Health-Adjacent Data is bound by written confidentiality and data protection obligations at least as protective as those in Section 6; and (iii) Vendor obtains Client’s prior written consent, not to be unreasonably withheld, before engaging any subcontractor that will have direct access to Health-Adjacent Data. Vendor shall provide Client, upon request, with a current list of subcontractors engaged in the performance of the Services.

11.3 Location of Personnel

Vendor shall disclose in the Initial SOW the countries in which personnel performing the Services (including any subcontractor personnel) will be located, and shall not materially change such locations, insofar as they involve access to Health-Adjacent Data, without Client’s prior written consent, not to be unreasonably withheld.

12. General Provisions

12.1 Independent Contractor

Vendor is an independent contractor, and nothing in this Agreement shall be construed to create a partnership, joint venture, agency, or employment relationship between the Parties. Vendor is solely responsible for the supervision, direction, and compensation of its personnel, including all applicable withholdings, benefits, and employment-related taxes.

12.2 Insurance

During the Term, Vendor shall maintain, at its own expense: (i) commercial general liability insurance with limits of not less than USD \$2,000,000 per occurrence; (ii) professional liability (errors and omissions) insurance with limits of not less than USD \$2,000,000 per claim; and (iii) cyber liability insurance, covering data breach response costs and regulatory fines to the extent insurable, with limits of not less than USD \$2,000,000 per claim. Vendor shall furnish Client with certificates of insurance evidencing such coverage upon reasonable request, and shall notify Client at least fifteen (15) days prior to any cancellation or material reduction of such coverage.

12.3 Non-Solicitation

During the Term and for a period of twelve (12) months thereafter, neither Party shall knowingly solicit for employment any employee of the other Party who was directly involved in the Project, provided that this restriction shall not apply to: (i) general solicitations not specifically directed at such employees (including general job postings or recruitment advertising); or (ii) an employee who responds to such a general solicitation without direct targeted solicitation.

12.4 Assignment

Neither Party may assign this Agreement without the prior written consent of the other Party, not to be unreasonably withheld, except that either Party may assign this Agreement without consent to a successor in connection with a merger, acquisition, or sale of all or substantially all of its assets relating to this Agreement, provided the assignee agrees in writing to assume all obligations under this Agreement and, where the assignment is by Vendor, Client is notified in writing at least fifteen (15) days prior to closing. Any purported assignment in violation of this Section 12.4 shall be void.

12.5 Force Majeure

Neither Party shall be liable for any failure or delay in performance (other than payment obligations) to the extent caused by circumstances beyond its reasonable control, including acts of God, natural disaster, war, terrorism, civil unrest, governmental action, epidemic or pandemic, or widespread internet or utility failure, provided the affected Party promptly notifies the other Party and uses commercially reasonable efforts to mitigate the impact. If a force majeure event continues for more than thirty (30) days, either Party may terminate the affected SOW upon written notice, subject to Section 9.2 as applied mutatis mutandis for payment of Services performed to date.

12.6 Notices

All notices under this Agreement shall be in writing and delivered by email (with confirmation of receipt) and by courier or certified mail to the addresses set out in the signature block, or such other address as a Party may designate in writing. Notices shall be deemed given upon confirmed receipt.

12.7 Governing Law and Jurisdiction

This Agreement shall be governed by and construed in accordance with the laws of the State of Delaware, without regard to its conflict of laws principles. Subject to Section 12.9, the state and federal courts located in Delaware shall have exclusive jurisdiction over any dispute arising out of or relating to this Agreement, and each Party consents to the personal jurisdiction of such courts.

12.8 Dispute Resolution

In the event of any dispute arising out of or relating to this Agreement, the Parties shall first attempt to resolve the dispute through good-faith negotiation between designated senior representatives of each Party within thirty (30) days of a written request for negotiation. If the dispute is not resolved within such period, either Party may pursue any remedy available at law or in equity, including in the courts designated under Section 12.8, provided that either Party may seek injunctive or other equitable relief at any time to prevent irreparable harm, including in connection with a breach of Section 6 (Confidentiality and Data Protection) or Section 5 (Intellectual Property).

12.9 Entire Agreement; Order of Precedence

This Agreement, together with all Exhibits and any executed SOWs and Change Orders, constitutes the entire agreement between the Parties with respect to its subject matter and supersedes all prior or contemporaneous agreements, understandings, and communications, whether written or oral. In the event of a conflict, the order of precedence shall be: (i) a Change Order; (ii) the applicable SOW; (iii) the body of this Agreement; and (iv) any Exhibit not otherwise addressed.

12.10 Amendment and Waiver

No amendment to this Agreement shall be effective unless in writing and signed by authorized representatives of both Parties. No waiver of any provision of this Agreement shall be effective unless in writing, and no failure or delay by either Party in exercising any right under this Agreement shall operate as a waiver of such right.

12.11 Severability

If any provision of this Agreement is held invalid or unenforceable by a court of competent jurisdiction, that provision shall be modified to the minimum extent necessary to make it enforceable, or if it cannot be so modified, severed, and the remaining provisions of this Agreement shall continue in full force and effect.

12.12 Counterparts

This Agreement may be executed in counterparts, including by electronic signature, each of which shall be deemed an original, and all of which together shall constitute one and the same instrument.

IN WITNESS WHEREOF, the Parties have caused this Agreement to be executed by their duly authorized representatives as of the dates set out below.

HealthPulse Technologies

Ruth

Signature

Signature

Name / Title

Name / Title

Date

Date

Address for Notices

Address for Notices

Exhibit A – Initial Statement of Work

A.1 Project Overview

This Statement of Work No. 1 (the “**Initial SOW**”) is entered into pursuant to, and incorporates by reference, the Master Software Development Services Agreement between HealthPulse Technologies (“Client”) and Ruth (“Vendor”) dated July 2026 (the “**Agreement**”). Capitalized terms used but not defined in this Exhibit A have the meanings given in the Agreement.

Vendor shall design, develop, test, and deploy the HealthPulse Patient Engagement Platform, comprising a patient-facing web and mobile application, a provider/admin dashboard, and a personalization/recommendation engine fine-tuned on Client Data, as further described below.

A.2 Functional Scope – Core Platform

Patient Portal

- Patient registration, authentication, and profile/care-preference management
- Personalized health content feed, informed by the Recommendation Engine
- Appointment suggestion surface, informed by the Recommendation Engine
- Appointment scheduling, rescheduling, and cancellation
- Notification center (push and email) for appointment reminders and content updates
- Responsive web application and native-equivalent mobile applications for iOS and Android via a shared cross-platform framework (React Native, unless otherwise agreed)

Provider / Admin Dashboard

- Role-based access control (minimum: Admin, Care Coordinator, Provider roles)
- Content library management (create, edit, tag, publish/unpublish health content)
- Appointment availability management
- Patient account and support tools, with access controls appropriate to Health-Adjacent Data
- Basic engagement and utilization reporting with exportable views

A.3 Functional Scope – ML Component (Recommendation / Personalization Engine)

- Data pipeline for ingesting and preprocessing Client-provided patient engagement and content interaction data for training/evaluation purposes
- Fine-tuning of a base recommendation model (architecture and base model to be proposed by Vendor and approved by Client during Milestone 2) on Client Data
- Content recommendation logic surfaced in the Patient Portal
- Appointment-suggestion logic informed by patient history, preferences, and provider availability
- Evaluation framework and held-out validation dataset methodology, to be documented and agreed by the Parties prior to Milestone 5

- Target Metrics: to be finalized and documented in writing by the Parties no later than the end of Milestone 2, based on baseline data review, and to include at minimum a top-5 content recommendation precision metric and an appointment-suggestion acceptance-rate proxy metric, each measured against a held-out validation dataset

A.4 Non-Functional Requirements

- Application deployed on cloud infrastructure designated by Client (e.g., AWS), with infrastructure-as-code configuration delivered as part of the technical documentation
- Target page load performance of under 2.5 seconds for primary patient-facing pages under normal load, measured in the staging environment
- Support for at least 1,000 concurrent users on the patient-facing application without material performance degradation, as validated during Milestone 5 testing
- Industry-standard security practices for authentication, session management, and handling of Health-Adjacent Data, consistent with Section 6.3 of the Agreement
- Personnel performing Services involving access to Health-Adjacent Data will be located in the United States and India, as further detailed in Vendor's staffing plan to be provided at kickoff

A.5 Out of Scope

The following are explicitly out of scope under this Initial SOW and, if required, shall be addressed via Change Order: development of a novel model architecture from scratch (as opposed to fine-tuning an existing base model); multi-language localization beyond English (US); native SDK development outside the agreed cross-platform framework; migration of historical data from Client's legacy systems (data migration support may be scoped separately); clinical decision support functionality intended to provide diagnostic or treatment recommendations (the Recommendation Engine is limited to content and scheduling suggestions and is not a clinical decision support tool); and formal regulatory submissions or certifications (e.g., FDA clearance), should Client determine such are required.

A.6 Milestone Schedule and Timeline – Core Platform

The Core Platform shall proceed over an anticipated duration of seven (7) months from the Effective Date, in accordance with the following schedule (target dates to be confirmed at kickoff and are subject to reasonable adjustment under Section 2.5 of the Agreement):

#	Milestone	Target Timing	Fee	Review Period
1	Kickoff; discovery; finalized specification	Weeks 1–3	\$26,000	15 business days
2	UX/UI design sign-off; architecture approval; Target Metrics agreed	Weeks 4–6 (Month 1–2)	\$26,000	15 business days
3	Provider/Admin dashboard (staging)	Weeks 7–13 (Month 2–3)	\$52,000	15 business days
4	Patient portal (web/mobile) + integration layer (staging)	Weeks 12–21 (Month 3–5)	\$65,000	15 business days
5	Integrated testing, bug-fix, UAT support, ML evaluation	Weeks 20–26 (Month 5–6)	\$39,000	15 business days
6	Final Acceptance; production go-live	Weeks 26–30 (Month 7)	\$52,000	15 business days

Milestones 3 and 4 overlap intentionally to allow parallel workstreams across Vendor’s backend and frontend/mobile teams. ML Component work under Section A.3 shall proceed in parallel sprints commencing at the start of Milestone 2 and continuing through Milestone 5, invoiced monthly on a time-and-materials basis as set out in Section 4.3 of the Agreement.

A.7 ML Component – Rate Card

Role	Hourly Rate (USD)
ML / Data Lead	\$185
Senior ML Engineer	\$165
Data Engineer	\$140
ML Engineer	\$130
QA / Evaluation Analyst	\$95

A.8 Project Team

Vendor shall assign a project team comprising, at a minimum: one (1) Project Manager (Key Personnel), one (1) Technical Lead / Solutions Architect (Key Personnel), one (1) ML/Data Lead (Key Personnel), backend engineers, frontend/mobile engineers, ML/data engineers, one (1) QA engineer, and one (1) UI/UX designer, sized appropriately by Vendor to meet the Milestone schedule.

A.9 Acceptance Criteria

Acceptance of each Core Platform Milestone shall be based on: (i) conformance of the delivered functionality with the functional scope described in Section A.2 for the applicable Milestone; (ii) successful deployment to the designated staging environment (or production, for Milestone 6); and (iii) for Milestones 5 and 6, successful completion of the agreed UAT test scripts without unresolved critical or high-severity defects and, for the ML Component, evaluation results consistent with Section 2.3 of the Agreement, as further defined in the test and evaluation plan to be agreed by the Parties no later than the start of Milestone 5.

A.10 Assumptions

This Initial SOW is based on the following assumptions, any material change to which may give rise to a Change Request under Section 3 of the Agreement: (i) Client will designate a single Project Lead and make such individual reasonably available throughout the Project; (ii) Client will provide training data for the ML Component, of a volume and quality sufficient for the fine-tuning approach proposed by Vendor and approved by Client, no later than two (2) weeks following Milestone 2 sign-off; (iii) Client will provide timely access to any required third-party accounts and branding/creative assets; and (iv) Client feedback on design and functional deliverables will be provided within the timeframes set out in Section 2.5 of the Agreement.